

U.O.Note No.450/SC.D/87-1, Genl.Admn. (SC.D) Dept., dt.20.07.1987: Sanction order to be issued in 45 days and other procedural requirements to be fulfilled.

Subject Heading : Sanction of prosecution - to issue within 45 days.

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Ref : 1. Memo.No.1676/SC.D/82-3, G.A. (SC.D) Dept.,dt.10.11.1982.

2. From the Director-General, Anti-Corruption Bureau, Letters C.No.76/ RPC(C)/87, dt.28.4.1987 and 112/RPC(C)/87, dt. 25.06.1987.

In the reference first cited, it was stated that sanction for prosecution of a person under Section 6(1) of the Prevention of Corruption Act, 1947, who is employed in connection with the affairs of the State whether he is a member of State or Subordinate Service shall continue to be issued by the Government.

2. During the conference of Chief Secretaries held at New Delhi on 16th and 17th February, 1987, it was recommended among others, that a time limit should be prescribed for grant or refusal of sanction for prosecution as it was delayed frequently.

3. The Director-General, Anti-Corruption Bureau has in the references second cited also brought to notice certain defects in some of the orders issued by the Government sanctioning prosecution of Government Servants involved in corruption charges and requested to issue general instructions in the matter besides fixing time limit for according sanction for prosecution.

4. The following instructions are, therefore, issued :-

- (i) Sanction of prosecution has to be issued by Departments of Secretariat within 45 days (forty five) from the date of receipt of the final report from the Anti-Corruption Bureau;
- (ii) References of Government as well as the Anti-Corruption Bureau are mentioned and copies of the sanction order are being marked to other Departments. The sanction order is intended only to the Director-General, Anti-Corruption Bureau. Hence copies need not be marked to other Departments. It is also not necessary to cite the references of the Government / Anti-Corruption Bureau in the order.
- (iii) Though correct sections of the relevant Codes / Acts are mentioned in the draft sanction order sent to Government by the Bureau, the sections are wrongly mentioned in the sanction order. Care should, therefore, be taken to correctly quote the section as indicated by the Anti-Corruption Bureau.
- (iv) The bribe amounts / illegal gratifications are wrongly mentioned in the sanction orders which should be avoided.
- (v) The sanction orders have to be authenticated by the Principal Secretary / Secretary.

5. The Departments of Secretariat are requested to issue the orders sanctioning the prosecution of the Government Servants correctly keeping in view the above instructions.